

SOFTWARE DEVELOPMENT, TECHNICAL HANDOVER, EVALUATION AND INTELLECTUAL PROPERTY RESERVATION AGREEMENT

Project: Nyahururu County Referral Hospital Digital Platform

Version: Handover / Evaluation Version

Date: _____

1. PARTIES

This Agreement is made between:

1.1 Developer / Development Party

ITR Business Solutions

Email: info@itrbizsolutions.co.ke

Address: Westlands Road, Greenway Lane

Represented for purposes of the technical development and handover by:

Name: Onesmus Kathurima Kirimi

Official Contact: 0768444502

Email: onesmuskirimi64@gmail.com

Hereinafter referred to as the “**Developer**”, “**Development Party**”, or “**ITR Business Solutions**”, as applicable.

1.2 Receiving / Hosting Party

Nyahururu County Referral Hospital / County IT Department

Represented by:

Name: _____

Designation: _____

Department: _____

Email: _____

Telephone: _____

Hereinafter referred to as the “**Receiving Party**”, “**County IT Team**”, or “**County**”.

The Developer and the Receiving Party shall collectively be referred to as the “**Parties.**”

2. PURPOSE OF THIS AGREEMENT

The purpose of this Agreement is to formally record the temporary technical handover of the current source code, project files, technical documentation and related development materials for the Nyahururu County Referral Hospital Digital Platform to the County IT Team for:

1. technical inspection;
2. system testing;
3. security and infrastructure assessment;
4. hosting and deployment by the County IT Team;
5. user acceptance testing;
6. collection of feedback from users and County technical personnel;
7. identification of defects, improvements and additional requirements; and
8. continued collaborative development of the system where required.

This handover is intended to facilitate evaluation, testing, hosting and continued development of the system.

The handover of the files shall not, by itself, constitute an assignment or transfer of copyright, intellectual property rights, authorship rights, or other proprietary rights in the software to the Receiving Party.

3. STATUS OF THE SYSTEM AT HANDOVER

The Parties acknowledge that the system is **still under development** and that this handover is being made before the system has reached its final production and acceptance state.

The Receiving Party acknowledges that:

1. the system has been developed to its current state by the Developer;
2. the files being handed over represent the current development version of the system;
3. the system requires technical review, testing and user feedback;
4. some sections may require corrections, improvements, additional requirements or integration work;
5. the system has not yet received final technical acceptance;
6. the system has not yet received final user acceptance;
7. the County IT Team will undertake hosting and deployment; and
8. the Developer is not responsible for the County's hosting infrastructure, server configuration, domain configuration, SSL configuration, backups or other infrastructure decisions unless separately agreed in writing.

The accompanying technical documentation describes the system architecture, environment requirements, database structure, user roles, API surface, deployment considerations, backup requirements and known limitations.

4. SCOPE OF THE HANDOVER

The Developer shall provide the Receiving Party with the available project materials required for technical evaluation and hosting, including, where applicable:

4.1 Frontend

- React application source code;
- frontend configuration;
- components;
- pages;
- layouts;
- API integration code;
- assets and related project files.

4.2 Backend

- Node.js / Express application source code;
- API routes;
- controllers;
- services;
- middleware;
- authentication components;
- database models;
- migration files;
- utilities;
- scheduled/background job code;
- related configuration files.

4.3 Database

The system currently uses MySQL with Sequelize ORM and database migrations.

The handover may therefore include:

- database schema;

- Sequelize models;
- migration files;
- seed configuration;
- database documentation;
- relevant database setup instructions.

4.4 Technical Documentation

The Developer shall provide the available technical documentation describing, among other things:

- system architecture;
- repository structure;
- environment variables;
- database structure;
- user roles;
- API endpoints;
- research functionality;
- deployment requirements;
- backup and recovery considerations;
- security architecture;
- known limitations;
- dependency information.

5. HOSTING AND DEPLOYMENT RESPONSIBILITY

The Parties expressly acknowledge that **the County IT Team shall be responsible for hosting and deployment of the system.**

The Developer shall not be responsible for:

- provision of the production server;
- cPanel or other hosting account administration;
- domain registration or renewal;
- DNS configuration;
- SSL certificate installation;
- server operating system configuration;

- MySQL server administration;
- production server security;
- firewall configuration;
- server backups;
- hosting provider availability;
- server storage capacity;
- network availability;
- production credentials created or controlled by the County.

The technical documentation provides deployment requirements and procedures for the system, including Node.js, MySQL, PM2, and related infrastructure.

The County IT Team shall conduct its own infrastructure and security assessment before placing the system into production.

6. TECHNICAL REVIEW AND FEEDBACK PROCESS

Following receipt of the project files, the County IT Team shall conduct a technical review and user testing process.

The review may include:

1. installation and configuration testing;
2. database testing;
3. authentication and authorization testing;
4. functional testing;
5. security testing;
6. performance testing;
7. user acceptance testing;
8. browser/device compatibility testing;
9. hosting compatibility testing;
10. identification of defects;
11. identification of missing requirements;
12. identification of recommended improvements.

The County IT Team shall provide the Developer with a written review report containing, where reasonably possible:

- identified defects;
- technical issues;
- security findings;
- user feedback;
- requested improvements;
- missing functionality;
- integration requirements;
- priority of issues; and
- recommended changes.

The Developer shall use the report as the basis for subsequent corrections, improvements or further development, subject to the Parties agreeing on the scope and terms of such additional work.

7. UNFINISHED MODULES AND COUNTY SYSTEM INTEGRATION

The Parties expressly acknowledge that certain modules are not considered fully complete at the date of this handover.

In particular, the following areas require further work and/or integration with the County's existing systems:

7.1 Career Module

The Career module requires further development and/or integration with the relevant County systems and processes.

7.2 Tender Module

The Tender module requires further development and/or integration with the relevant County procurement/tender systems and processes.

The Parties acknowledge that completion of these modules may require:

- access to County APIs;
- access to existing County systems;
- technical documentation from the County;
- authentication mechanisms;
- data exchange specifications;
- integration credentials;

- County specific business rules;
- security requirements;
- approval from the County IT Team; and
- joint development and testing.

Consequently, the Developer shall not be deemed to have failed to complete these modules merely because the required County integration infrastructure, specifications, access or approvals have not yet been made available.

8. COLLABORATIVE DEVELOPMENT

Where completion of the Career, Tender or other integration-dependent modules requires collaboration with the County IT Team, the Parties shall work together to define:

1. the integration requirements;
2. technical interfaces;
3. data requirements;
4. security requirements;
5. testing procedures;
6. acceptance criteria; and
7. responsibilities of each Party.

Where the County requests substantial additional functionality outside the current development scope, such work shall be separately documented and agreed upon by the Parties.

Nothing in this Agreement shall be interpreted as requiring the Developer to provide unlimited future development, support or maintenance without a separate agreement or written authorization.

9. INTELLECTUAL PROPERTY AND COPYRIGHT

9.1 No Automatic Transfer of Ownership

The delivery, copying, uploading, hosting, installation, testing or examination of the project files by the Receiving Party shall **not by itself constitute an assignment or transfer of copyright or other intellectual property rights** in the software.

The Receiving Party shall not represent, publish or communicate to third parties that the source code was authored exclusively by the County IT Team or that the act of receiving the files automatically transferred copyright ownership to the County.

9.2 Existing Development Materials

All pre-existing software components, development methodologies, reusable libraries, generic code, templates, frameworks, development tools, technical approaches, know-how and materials owned or

controlled by the Developer or ITR Business Solutions before this project shall remain the property of their respective owners.

Nothing in this Agreement shall transfer ownership of such pre-existing materials.

9.3 Project Source Code

Unless the Parties execute a separate written intellectual property assignment expressly transferring copyright, the delivery of the source code under this Agreement shall be treated as a **technical handover and licence for evaluation, testing, hosting and operation**, and not as an unconditional transfer of ownership.

9.4 Limited Operational Licence

For purposes of operating the system, the Receiving Party is granted a non-exclusive licence to:

- host the software;
- install the software;
- configure the software;
- test the software;
- use the software for the County's intended institutional purposes;
- make reasonable technical modifications necessary for hosting, security and maintenance.

This licence does not automatically grant the Receiving Party the right to:

- sell the software to another organization;
- commercially license the software to third parties;
- represent itself as the original developer;
- transfer the software to another entity as its own independently developed work;
- remove legitimate authorship or development attribution where applicable; or
- assign the Developer's intellectual property rights to another party.

Any broader transfer of intellectual property rights must be documented in a separate written agreement signed by the party legally entitled to make such transfer.

10. AUTHORSHIP AND DEVELOPER RECOGNITION

The Parties acknowledge that the system has been developed by the Developer/Development Party and that the technical contribution of the Developer shall not be deliberately misrepresented.

Where the system, project documentation, technical reports, presentations or public-facing development records identify the development team or software developer, the Developer's contribution shall be accurately represented.

Nothing in this clause prevents the County from identifying the County as the owner/operator of its institutional data, content, branding, domain, operational processes or other materials belonging to the County.

11. NO EXCLUSION FROM FUTURE DEVELOPMENT

The Parties acknowledge that the system is being handed over for testing and feedback while development is still ongoing.

Accordingly, the County IT Team shall not interpret the technical handover as an indication that the Developer has been removed from the project.

For material changes, major enhancements, completion of integration-dependent modules or further development arising from the current system, the County shall communicate the requirements to the Developer/Development Party and provide an opportunity for the Developer to participate in the subsequent development process.

Where the County decides to engage another developer or development company, such engagement shall not by itself transfer ownership of the Developer's pre-existing intellectual property, code, technical materials or development work.

Any newly created work shall be governed by the written agreement applicable to that work.

12. CHANGE CONTROL

After the County IT Team submits its technical and user feedback report, the Parties shall categorize requested changes into:

Category A — Defects

Errors or failures in functionality that was already included in the agreed development scope.

Category B — Improvements

Changes that improve usability, performance, design or workflow without substantially changing the original scope.

Category C — New Requirements

New functionality that was not part of the existing development scope.

Category D — External Integration

Work requiring integration with another County or third-party system.

Categories C and D may require a separate scope, quotation, work order or development agreement.

13. HANDOVER DOES NOT CONSTITUTE FINAL ACCEPTANCE

The Receiving Party's receipt of the source code and project files shall **not constitute final acceptance of the system**.

Final acceptance shall occur only after:

1. the County IT Team completes its technical review;
2. the County users complete appropriate user testing;
3. identified defects are addressed or otherwise agreed upon;
4. integration requirements have been assessed;
5. outstanding issues have been documented; and
6. the Parties sign a written acceptance document or otherwise formally agree that the system has reached the agreed acceptance state.

14. KNOWN TECHNICAL LIMITATIONS

The Parties acknowledge that the technical documentation identifies known limitations and technical debt in the current system.

These include, among other matters:

- ongoing migration/cutover validation from MongoDB to MySQL;
- lack of a comprehensive automated test suite;
- M-Pesa integration currently configured for sandbox use;
- single-server deployment;
- in-process scheduled jobs; and
- other limitations identified during technical review.

These limitations shall be considered during the County's testing and acceptance process.

15. PRODUCTION SECURITY AND CREDENTIALS

Production credentials shall be created and controlled by the County IT Team.

The County shall be responsible for securely managing:

- database credentials;
- email credentials;
- API credentials;
- M-Pesa credentials;

- JWT secrets;
- certificate signing secrets;
- server credentials;
- hosting credentials;
- domain credentials; and
- other production secrets.

The technical documentation specifically states that sensitive environment variables should not be shared through ordinary email or chat and should instead be stored securely.

The Developer shall not be deemed responsible for compromise of production credentials after they have been transferred to or independently generated and controlled by the County.

16. DATA PROTECTION AND CONFIDENTIALITY

The Parties shall treat confidential technical information, credentials, security information, personal information and non-public institutional information obtained during the project as confidential.

The Receiving Party shall be responsible for ensuring that production data and personal data are handled in accordance with applicable Kenyan law and the County's applicable information-security and data-protection policies.

The system includes functionality involving potentially sensitive information, including research submissions, user accounts, appointments, blood-donor information, payments and audit records.

The source-code handover shall not be interpreted as authorization to disclose personal data contained within any production environment.

17. THIRD-PARTY SOFTWARE AND SERVICES

The system uses third-party frameworks, libraries, APIs and services.

These may include, among others:

- React;
- Node.js;
- Express;
- MySQL;
- Sequelize;
- Socket.IO;
- Nodemailer;

- Safaricom Daraja;
- PDF generation libraries; and
- other open-source dependencies.

The rights associated with third-party software shall remain subject to their respective licences and terms.

The Developer does not transfer ownership of third-party software merely by handing over the project source code.

18. COUNTY DATA, BRANDING AND CONTENT

Nothing in this Agreement transfers ownership of:

- County trademarks;
- hospital logos;
- County branding;
- institutional documents;
- hospital photographs;
- hospital-generated content;
- patient/user data;
- County records;
- institutional reports; or
- other materials supplied by the County.

Such materials remain subject to the rights and policies of the County or their respective owners.

19. DEVELOPER'S PORTFOLIO AND PROFESSIONAL RECORD

Subject to confidentiality and applicable County policies, the Developer may identify the project in his professional portfolio as a system in which he participated in development.

The Developer shall not disclose:

- passwords;
- private API keys;
- confidential patient information;
- personal data;
- confidential County security information;
- unpublished security vulnerabilities; or

- other confidential information.

The Developer may describe the project at a high level for professional purposes without disclosing confidential information.

20. NO WAIVER OF RIGHTS

The fact that the Developer provides the source code to the County, assists with technical review, responds to feedback or assists with subsequent improvements shall not constitute a waiver of any intellectual property or contractual rights unless expressly stated in a written agreement signed by the party legally entitled to make such waiver.

Silence, cooperation, technical assistance, access to source code or participation in testing shall not be interpreted as an implied transfer of ownership.

21. NO IMPLIED ASSIGNMENT

No assignment of copyright, intellectual property or other proprietary rights shall be inferred from:

- physical or electronic delivery of files;
- access to source-code repositories;
- hosting of the application;
- installation on County infrastructure;
- deployment to a County domain;
- database creation;
- technical support;
- bug fixing;
- system testing;
- participation in meetings; or
- future collaboration.

Any assignment shall be expressly documented in writing and signed by the person or entity legally entitled to make that assignment.

22. RESPONSIBILITY AFTER HOSTING

Once the County IT Team deploys the system to its production environment, the County IT Team shall assume responsibility for the production infrastructure.

This includes:

- hosting availability;
- server security;
- backups;
- server monitoring;
- production credentials;
- operating-system security;
- database administration;
- storage management;
- SSL certificates;
- network configuration;
- firewall rules;
- access control to infrastructure; and
- disaster recovery.

The technical documentation identifies database contents, uploaded files, environment secrets and certificate-signing secrets as critical items requiring appropriate backup and protection.

23. SUPPORT AFTER HANDOVER

The current handover does not constitute an unlimited or indefinite support agreement.

Technical support, maintenance, feature development, system administration, emergency support or future enhancements may be provided under a separate written agreement, purchase order, work order or other mutually agreed arrangement.

The Parties may agree on a separate maintenance and support agreement after the County completes its evaluation.

24. RECORD OF FILES HANDED OVER

The following materials shall be recorded as part of this handover:

Item	Status	Remarks
Frontend source code	☐ Handed Over	
Backend source code	☐ Handed Over	

Database/migrations	☐ Handed Over	
Technical documentation	☐ Handed Over	
Environment templates	☐ Handed Over	
API documentation	☐ Handed Over	
Assets	☐ Handed Over	
Installation instructions	☐ Handed Over	
Other project files	☐ Handed Over	

The Parties may attach a detailed file inventory as **Schedule A** to this Agreement.

25. HANDOVER DATE

The technical handover shall take place on:

Date: _____

Method of Handover:

- ☐ Physical storage device
- ☐ Secure file transfer
- ☐ Git repository
- ☐ County-approved storage system
- ☐ Other: _____

The Receiving Party acknowledges receipt of the materials listed in this Agreement.

26. ENTIRE AGREEMENT

This Agreement represents the Parties' understanding regarding the purpose and legal character of this particular technical handover.

It shall not automatically replace any previous written agreement between ITR Business Solutions and the County unless expressly stated in writing.

Where a previous contract, employment agreement, consultancy agreement, purchase order or intellectual-property agreement exists, the Parties shall review the documents together to determine whether any provisions relating to ownership, copyright, confidentiality or commissioned work apply.

27. CONFLICT WITH PREVIOUS AGREEMENTS

If there is an existing agreement between the County and ITR Business Solutions relating to the development of this system, the Parties shall read this Agreement together with that agreement.

Nothing in this document is intended to unlawfully override an existing contractual intellectual-property assignment.

Where the Parties intend to change or clarify ownership, the change shall be expressly stated and signed by all parties whose rights are affected.

28. GOVERNING LAW

This Agreement shall be interpreted in accordance with the laws of the Republic of Kenya.

The Parties shall first attempt to resolve any dispute arising from this Agreement through good-faith consultation.

If the dispute cannot be resolved through consultation, the Parties may pursue the appropriate dispute-resolution mechanism available under Kenyan law.

29. ACKNOWLEDGEMENT BY THE RECEIVING PARTY

By signing this Agreement, the Receiving Party confirms that it understands and agrees that:

1. the system is still under development;
2. the files are being handed over for technical review, testing, hosting and feedback;
3. the handover does not by itself constitute final acceptance;
4. the handover does not by itself constitute an assignment of intellectual property rights;
5. the Career and Tender modules require further integration/development;
6. the County IT Team is responsible for hosting and production infrastructure;
7. the County IT Team shall provide a technical/user feedback report after its review;
8. subsequent development shall be based on the agreed scope and feedback;
9. the Developer's existing intellectual property rights are not automatically extinguished by the handover; and
10. any separate transfer of ownership must be expressly documented in writing.

30. SIGNATURES

FOR THE DEVELOPMENT PARTY

ITR Business Solutions

Name: _____

Designation: _____

Signature: _____

Date: _____

Official Stamp: _____

DEVELOPER / TECHNICAL REPRESENTATIVE

Onesmus Kathurima Kirimi

National ID Name: Onesmus Kathurima Kirimi

Email: onesmuskirimi64@gmail.com

Official Contact: 0768444502

Signature: _____

Date: _____

FOR THE COUNTY / RECEIVING PARTY

Organization: _____

Department: _____

Name: _____

Designation: _____

Signature: _____

Date: _____

Official Stamp: _____

SCHEDULE A — PROJECT HANDOVER INVENTORY

Project Name:

Nyahururu County Referral Hospital Digital Platform

Current Version:

Version: _____

Handover Date:

Source Code

- Frontend repository/files: _____
- Backend repository/files: _____

- Database/migration files: _____
- Configuration templates: _____
- Assets: _____

Documentation

- Technical documentation: _____
- Installation instructions: _____
- API documentation: _____
- Database documentation: _____
- User/administration documentation: _____
- _____

Outstanding Development

At the time of handover, the following items remain subject to further development, integration, testing or feedback:

1. Career module integration;
2. Tender module integration;
3. County-system/API integration where required;
4. Technical testing and validation;
5. User acceptance testing;
6. Corrections arising from the County's review;
7. Additional requirements identified during user testing; and
8. Other items mutually agreed by the Parties.

SCHEDULE B — POST-HANDOVER REVIEW PROCESS

The County IT Team shall, after deployment/testing:

Step 1: Review the source code and technical documentation.

Step 2: Configure the system in the County's testing/hosting environment.

Step 3: Conduct technical and security checks.

Step 4: Conduct functional testing.

Step 5: Conduct user acceptance testing.

Step 6: Document identified issues and requested changes.

Step 7: Submit the review/feedback report to the Developer/Development Party.

Step 8: The Parties shall review the report and classify the items as defects, improvements, new requirements or integration work.

Step 9: The Developer/Development Party shall address agreed development items according to the agreed scope.

Step 10: The Parties shall conduct a subsequent validation/acceptance review.

FINAL ACKNOWLEDGEMENT

The Parties confirm that this document records a **technical handover for evaluation, testing, hosting, feedback and continued development**, and that the mere possession or hosting of the source-code files shall not be interpreted as an automatic transfer of copyright or intellectual property ownership.

Any future intellectual-property assignment, exclusive licence, commercial exploitation right or ownership transfer shall be documented separately and expressly in writing.